

(ASCI), the watchdog tasked with saving consumers from the shady excesses of a famously excessive industry.

The ASCI, established in 1985, comprises professionals from companies, ad agencies, media and allied services. Like many of its counterparts abroad, it has adopted a code for self-regulation to promote healthy advertising, ensure fair competition and protect consumer rights.

The claims by any commercial have to be substantiated with data from an independent and recognised testing institute. "We want to crack-down on misleading advertising, including claims that are not supported by adequate and proper tests," says Madhukar Kamath, vice-chair-

the alacrity and readiness with which parties make a mountain out of a molehill that has multiplied several times," he adds.

However, when it comes to self-regulation, the industry is divided. While Lowe Chairman Balki feels "the ad industry understands how certain things can be fixed, rather than taking an extreme step from the outside", Dias feels self-regulation cannot work in the "dog eat dog world of current corporate culture, so a fair industry body that punishes false allegations and accusations equally is the order of the day".

While most support cracking down on false claims, there are grey areas related to portrayal of women and

the ASCI to look into the matter. The company, Hindustan Unilever (HUL), has been sent a letter and asked to respond in 15 days' time.

The advertising industry stands united over the issue. "I don't think it could have been objectionable," says Padhi. Adds JWT CEO Colvyn Harris, India, "Here it is a matter of creativity. We should not be so old-fashioned."

Earlier this year, the I&B Ministry had asked channels to stop airing an ad of life insurance firm ING Vysya that asks parents to get insurance cover for their daughters as they are a burden. The ad's tagline "*hai to pyaari lekin bojh hai bhari*" received several representations against it. However, again there were grey areas, as the "*bhari*" term referred to happiness and not the girl, who was just but one in a series, featuring a man and baby too.

SaniFresh Thick.
The secret of my shiny, silky hair.



Introduce in your haircare
routines because SaniFresh
Thick covers your hair, fills
out and seals your cuticle for
quicker shine and growth,
but there will be a visible glow
in your hair colour too.
SaniFresh Thick. Adds shine
and seals cuticles.

SaniFresh Thick's improved formula
forms a thick layer on the scalp, which
seals cuticles and helps increase
the lifespan of cells, making your
scalp healthy.

Rs 25
OFF!

INDUSTRYSPEAK

"WE WANT TO CRACK-DOWN ON MISLEADING ADS AND THOSE NOT SUPPORTED BY TESTS."

— MADHUKAR KAMATH
Vice-Chairman, ASCI

"OF THE 10 PEOPLE WATCHING AN AD, ONE MIGHT HAVE A PROBLEM WITH IT."

— SANTOSH PADHI
ECD, Leo Burnett India

man, ASCI and managing director and CEO, Mudra Group. Last year, 69 out of 122 complaints were upheld. In 2006, the figure was higher—78 out of 140 complaints being upheld. Agnello Dias, chief creative officer, JWT India, says with the increasing awareness among general public, the number of complaints has gone up manifold. Along with that, the growing competition among marketers is forcing them to try every trick in the book to outwit each other and many even try to manipulate industry bodies through trumped-up charges. "So while the number of misleading claims may have gone up, it is

children, religion, gender and sexuality issues. "There is a thin line between overclaim, underclaim and vulgarity," says Santosh Padhi, executive creative director and national head of art, Leo Burnett India. "Of 10 people watching an ad, one might have a problem," he adds referring to the recent Axe commercial which was embroiled in controversy. It shows a man turning into a 'chocolate boy' because he sprayed a deodorant that had women swooning over him, and one even biting his buttocks. The Information & Broadcast (I&B) Ministry, reacting on a complaint from a consumer, has asked

On the other hand, an ad for Roop Amrit Fairness Cream by wws Skyshop was pulled out for its claim that 'dark people will become fair skinned'. ASCI Secretary-General Alan Collaco says the problem of so-called beauty products making bogus claims is a big one. Last year complaints against home care products, especially beauty products, were the maximum—22 in all.

Globally, advertising of food, alcohol and those related to environmental claims is becoming a big bone of contention. For instance, the Advertising Standards Authority in the UK received 561 complaints about misleading environmental claims last year which included extravagant language, confusing technical terms and even overclaims that the product has been modified in order to be less damaging to the environment. But an analysis of the same proved otherwise. For example, no car can be 'green', 'clean' or 'environmentally friendly', rules some of the world's strictest advertising guidelines but carmakers such as Toyota, General Motor's Opel, Mitsubishi and Suzuki had all used phrases that were judged misleading.

Given the huge cost involved in altering the ads, ASCI has started a copy advice service, where companies can seek advice on whether a proposed communication conforms to the code or not. Are advertisers listening? ■